

Council Meeting  
August 28, 2024  
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The Claremont City Council held a meeting on Wednesday, August 28, 2024, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne - Absent  
Ward II Councilor Brian Zutter  
Ward III Councilor Jonathan Hayden  
Assistant Mayor Debora Matteau  
At-Large Councilor William Greenrose  
At-Large Councilor Wayne Hemingway  
At-Large Councilor William Limoges  
At-Large Councilor Nicholas Koloski  
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

**AGENDA CHANGES**

Manager Manale removed Resolution 2025-10.

Mayor Girard requested Council decision for Councilor Greenrose’s appointment for the HDC.

**A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to appoint Councilor Greenrose to the HDC.**

**Voice vote:**

**Koloski – Yes**

**Greenrose – Yes**

**Limoges -Yes**

**Matteau – Yes**

**Hemingway – Yes**

**Zutter - Yes**

**Hayden – Yes**

**O’Hearne – Absent**

**Girard – Yes**

**Motion carried 8-0**

## **REPORT OF THE SECRETARY**

**A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to accept the minutes of the August 14, 2024 City Council meeting.**

### **Voice vote:**

**Koloski – Yes**

**Greenrose – Yes**

**Limoges -Yes**

**Matteau – Yes**

**Hemingway – Yes**

**Zutter - Yes**

**Hayden – Yes**

**O’Hearne – Absent**

**Girard – Yes**

**Motion carried 8-0**

## **MAYOR’S NOTES**

Wednesday, September 4<sup>th</sup> the Supervisor checklist will be in session from seven p.m. to seven thirty p.m. in the City Clerk’s office at City Hall.

Tuesday, September 10<sup>th</sup> will be the New Hampshire State Primary from eight a.m. to seven p.m. at Disnard Elementary and Claremont Middle School.

Friday, September 13<sup>th</sup> Claremont Clean Up will take place. Any citizen interest can pick up bags and gloves at the Ink Factory on School Street. DPW and the Ink Factory are working together on this event.

## **CITY MANAGER’S REPORT**

Manager Manale thanks Chief Wilmont and Director Bates for stepping up in his absence last week due to injury; as well as thanking the council members who reached out to check in. Manager Manale explains Ashley landing boat ramp replacement is due to be completed by mid-September.

Manager Manale informs the council and the public that Claremont has been awarded a ten-thousand-dollar grant with up to one thousand dollars in technical assistance to support the rural economic development process in the city. This grant was made possible through the outdoor recreation round table and generous support by the Richard King Melon Foundation. The Pedestrian path along the Sugar River to downtown Claremont will benefit from this grant. Claremont was one of four communities receiving funds.

Manager Manale has personally agreed to represent the city on the Sullivan County Community Power Committee.

Manager Manale explains the city is anticipating the completion of the 2023 audit by the end of the week.

### **CITIZEN'S FORUM**

Kelly Fontain Ward I- Mrs. Fontain expressed she would like to see the colorful benches back out on Pleasant Street. Mrs. Fontain expressed she would like to get the word out for Changes thrift shop on Pleasant Street as they do a lot for the Community.

Bonnie Miles Ward II- Mrs. Miles refers to Pleasant Street revitalization plan. Amendment to resolution. Mrs. Miles also read the resolution. Mrs. Miles would like to see the colorful benches and chairs back on Pleasant Street.

Norm Blouin Ward III– Inquires if the bike shop has insurance on the mountain. Expresses Sullivan street is not bringing anyone to town. Voices concern for his road and DPW has not gone back to fix the issues. Inquiries about the planning office and what they are doing to bring more business to town. States his distaste for the two fast food places going in.

Hope Damon State Representative- house bill 182 made it possible for employees not to be penalized for being a volunteer firefighter. When kids move that are in military families all IEP will also be transferred. House bill 1307 retired state employees, qualify as disabled state retirees. House bill 1065 changes requirements for sprinklers, to increase housing. House bill 1809 eating disorders alliance to be able to add that on their high school care. House bill 1961 Manufactured housing and how to reuse the most affordable.

Citizens Forum Closed at 6:57 PM.

### **OLD BUSINESS**

Ordinance 626, 2024 Non-Union Employee Classification Plan Attachment B- Part Time Evidence Custodian – Third Reading – Public Hearing (City Manager/Chief of Police)

## **CITY OF CLAREMONT - IN THE YEAR TWO THOUSAND AND TWENTY-FOUR**

### **ORDINANCE #626**

**Amending the City of Claremont's Merit System – Creation of Part-Time Evidence Custodian; Amending the Non-Union Employee Classification Plan**

THE CITY OF CLAREMONT ORDAINS:

Pursuant to Article III, Sections 24, 25 and Article IV, Sections 51 and 52, of the Claremont City Charter; the City's Merit System as well as the Non-Union Employee Classification Plan (Attachment B) are hereby amended and readopted as follows:

**Section 1. Creation of Position within the City of Claremont**

The City Council hereby establishes, by and through this Ordinance, the following position which shall be included in the City of Claremont's Merit System and as part of the list of positions within the City's 2024 Non-Union Employee Classification Plan:

**Part-Time Evidence Custodian** – This position shall be an entirely new position within the Claremont Police Department.

**Section 2. Compensation of the Positions Being Established by this Ordinance**

The rate of compensation to be paid to this new position shall be established by such Grade, as provided below, from which the salary range of each position is identified within the Non-Union Employee Pay Schedule at the annualized pay scales as set forth in Attachment C (on file in the City Manager's Office):

| <u>Position:</u>             | <u>Grade:</u> |
|------------------------------|---------------|
| Part-Time Evidence Custodian | 6             |

**Section 3. Non-Union Employee Classification Plan**

The compensation of every non-union employee of the City shall be determined by the classification of the job in which such person is employed and in accordance with Attachments B and C to the City's Merit System (which are on file in the City Manager's Office). Upon adoption of this Ordinance, the new version of the Non-Union Employee Classification Plan (Attachment B), shall be implemented with the proposed change contained therein and consistent with this legislative act. The Council anticipates further changes to the 2024 Non-Union Employee Classification Plan, by and through other pending ordinances, from which the 2024 version of the Plan shall be established by the conclusion of such legislative process.

**Section 4. Validity**

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

## **Section 5. Effective Date**

This Ordinance shall take effect and be enforced immediately upon passage, but shall be retroactive to the first day of the month in which it is passed upon third reading.

**A motion was made by Councilor Hemmingway and seconded by Councilor Koloski to adopt Ordinance 626.**

**Councilor Hemmingway read the explanation of proposed action into record.**

### **Roll call:**

**Koloski – Yes**

**Greenrose – Yes**

**Limoges -Yes**

**Matteau – Yes**

**Hemingway – Yes**

**Zutter - Yes**

**Hayden – Yes**

**O’Hearne – Absent**

**Girard – Yes**

**Motion carried 8-0**

## **NEW BUSINESS**

PILOT Agreement – Grissom Lane Solar Project– Public Hearing (City Manager/Assessing)

### **Motion to Approve PILOT Agreement**

The Claremont City Council, pursuant to RSA 72:74 and after public hearing duly noticed, approves the proposed Payment in Lieu of Tax Agreement (PILOT) between the City and Power Investment, LLC for a renewable solar power electric generating facility located at or near Grissom Road (map 176, lot 2) (the Property), and further authorizes the City Manager or his

designees to take all such actions as may be necessary to execute said PILOT and implement this motion in accordance with state law and regulation.

Mr. Hamilton is here in support of the city manager for solar by Grisom road 19.8 acres of land as current use land. The land generates this year \$65.61 in tax revenue for the city.

Manager Manale explains the company trying to come in and put in a solar farm. Six thousand per megawatt. Interchange and they can produce more than the City would charge more.

Councilor Zutter would like to find out who is currently using the land for farming.

Mr. Hamilton is unsure who is using the land and if it is used for farming but explains the land is enrolled in the current use program.

Assistant Mayor Matteau asks if the land will be coming out of current use.

Mr. Hamilton there will a land use change.

Assistant Mayor Matteau inquires the amount of the penalty for the change.

Mr. Hamilton the penalty is 10% of the land value.

Manager Manale explains the agreement.

Councilor Greenrose asks the track record of the company and their success rate.

Manager Manale states the company has done other projects in New Hampshire.

Councilor Koloski asks if this pilot still needs to go to the Planning Board.

Director Merrill states the Planning Board already has the items.

Councilor Hemmingway questions if the land will be leased or purchased.

Manager Manale explains the land will be purchased.

Councilor Hemmingway questions if the company will be responsible for any natural disaster and clean up if there were such an event.

Councilor Limoges inquires if it is only catastrophic events that will keep the company from paying the agreement.

Manager Manale explains even if the company produces less power, we will still minimum get the 20,00.00 dollars.

Councilor Koloski expresses he would like to see more of the questions answered before giving an answer tonight.

Mayor Girard questions if the company would start paying immediately.

Manager Manale states when their project is up and running.

Mayor Girard would like to know if the product goes down because of equipment going down will that prevent them from paying the entire pilot.

Manager Manale explains catastrophe event based on natural disasters.

Manager Manale explains at full capacity the price would twenty-four thousand but at minimum would be twenty thousand.

Greenrose asks if we know if they have plans to expand after this first step.

Manager Manale explains they are currently capped at what they are going to producing.

Director Merrill explains the capacity and the power companies improving lines.

Manager Manale explains it will be a ten year project to upgrade the capacity.

Councilor Hemmingway agrees the council needs a little more information on.

Manager Manale describes the solar is on private land not public land. The owners have determined that this is what they want to do with this land.

Director Merrill asks the council to confirm if the council would like to see the site plan.

Councilor Koloski stated this has been over a calendar year and would like to see site plans and tax map.

Mayor Girard inquires how did we come up with 6000.00 per megawatt

Manager Manale explains this is higher than what the going rate is and negotiated much higher. Director Merrill explains we can come back with confirmation for all questions from the council.

Mayor Girard opens public hearing.

Peter Nelson Ward III- would like clarification about a commercial project  
Girard privately owned project.

Mr. Nelson misunderstood but understands after Mayor Girard explains.

Mayor Girard closes public hearing

Manager Manale confirms questions from the council.

**A motion was made by Councilor Greenrose and seconded by Assistant Mayor Matteau to table the PILOT agreement to another meeting.**

**Roll call:**

**Koloski – Yes**

**Greenrose – Yes**

**Limoges -Yes**

**Matteau – Yes**

**Hemingway – Yes**

**Zutter - Yes**

**Hayden – Yes**

**O’Hearne – Absent**

**Girard – Yes**

**Motion carried 8-0**

Resolution 2025-11 Fire Prevention and Safety (FP&S) Grant Acceptance- Public Hearing (City Manager/Fire Chief)

Chief Chamberlain explains the Grant and gives a shout out to Mr. Lizotte.

**Resolution 2025-11  
Fire Prevention and Safety (FP&S) Grant Acceptance**

**BE IT RESOLVED** by the Claremont City Council, after a public hearing, duly noticed, that **WHEREAS**, the Claremont Fire Department has been awarded an Assistance to Firefighters Grant (AFG) for Fire Prevention and Safety (FP&S) in the amount of \$20,000 to support the Claremont Fire Department’s Smoke Detector program; and

**WHEREAS**, the City of Claremont intends to accept and transfer these grant funds to the appropriate department account for their designated use, with a total budget of \$20,000, which includes the federal award of \$19047.61, and a local contribution of \$952.39 to be allocated from the Claremont Fire Department's 2025 fiscal year operating budget; and

**WHEREAS**, this grant acceptance and transfer will have no additional cost impact on the tax rate; and

**WHEREAS**, this donation will greatly benefit the City of Claremont and its Fire Department by enhancing the department's operational capabilities; and

**NOW, THEREFORE BE IT RSOLVED**, that the City Council hereby accepts the Assistance to Firefighters Grant in the amount of \$20,000 with the required local contribution of \$952.39 to be funded from the Claremont Fire Department's 2025 fiscal year operating budget, resulting in no additional cost to the tax rate; and

**BE IT FURTHER RESOLVED**, that the City Manager, or their designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 vote required)*

Dated this 28th day of August, 2024, the City of Claremont, County of Sullivan, State of New Hampshire.

**A motion was made by Councilor Limoges and seconded by Councilor Greenrose to accept Resolution 2025-11 Councilor Limoges Read Resolution 2025-11 into the record.**

**Roll call:**

**Koloski – Yes**

**Greenrose – Yes**

**Limoges -Yes**

**Matteau – Yes**

**Hemingway – Yes**

**Zutter - Yes**

**Hayden – Yes**

**O'Hearne – Absent**

**Girard – Yes**

**Motion carried 8-0**

Resolution 2025-12 Claremont Ford Donation to Claremont Fire Department -Public Hearing (City Manager/Fire Chief)

Chief Chamberlain explains the resolution.

**Resolution 2025-12**

**Claremont Ford Donation to the Claremont Fire Department**

**BE IT RESOLVED** by the Claremont City Council, after a public hearing, duly noticed, that **WHEREAS**, the Claremont Fire Department's 2014 Car-2 was recently auctioned off due to ongoing mechanical issues and significant rust under the wheel wells;

**WHEREAS**, Christian Gomes from Kel Car Ford of Claremont has generously offered to donate a 2024 F-150 Special Service Model, fully equipped with emergency lights, a truck cap, and appropriate lettering for the fire department, with an estimated value of \$60,000;

**WHEREAS**, the only costs associated with accepting this donation are the installation of radio communication equipment and a command box/center, which can be accommodated within the current operating budget of the Claremont Fire Department;

**WHEREAS**, this donation will greatly benefit the City of Claremont and its Fire Department by enhancing the department's operational capabilities;

**NOW, THEREFORE BE IT RSOLVED**, that the City of Claremont hereby approves the acceptance of the donation of the 2024 F-150 Special Service Model from Ford of Claremont, with the appreciation of the city for this generous contribution.

**BE IT FURTHER RESOLVED**, that the City Manager, or their designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 vote required)*

Dated this 28th day of August, 2024, the City of Claremont, County of Sullivan, State of New Hampshire.

**A motion was made by Councilor Hayden and seconded by Councilor Limoges to accept resolution 2025-12. Councilor Hayden Read Resolution 2025-12 into the record.**

Councilor Koloski gives a thank you to chief Chamberlain and thank you to Mr. Gomes. The importance of the detail in the director reports.

Councilor Zutter gives a thank you to Chief Chamberlain and Mr. Gomes in Community actions for involvement.

Councilor Limoges gives thank you to Chief Chamberlain and thank you to Mr. Gnomes.

**Roll call:**

**Koloski – Yes**

**Greenrose – Yes**

**Limoges -Yes**

**Matteau – Yes**

**Hemingway – Yes**

**Zutter - Yes**

**Hayden – Yes**

**O'Hearne – Absent**

**Girard – Yes**

**Motion carried 8-0**

140 North Street Residential Deed Restriction (City Manager/Director of Planning and Development)

Director Merrill explains the North Street residential deed restrictions.

**Motion to Approve Authorization to Release Deed Restrictions**

The City of Claremont conveyed land and buildings located at 140 North Street, Claremont, NH to Michael Crone, by deed dated 2/22/99 and recorded in Vol. 1212, Page 746 of the Sullivan County Registry of Deeds.

The deed contained the following restrictions:

“SUBJECT TO THE FOLLOWING:

1. The property may not be used for residential purposes and must be in compliance with all applicable ordinances of the City of Claremont.
2. The grantee his heirs and assigns shall be responsible for the payment of all seasonably assessed real property taxes, notwithstanding the ability of the grantee, his heirs or assigns to claim an exemption from such taxes under applicable law.
3. The restriction that the grantee shall complete all improvements described in a purchase and sale agreement between the parties, dated November 18, 1999, covering the subject premises, or before one year from the date of this deed, failing which the property shall revert to the grantor upon notice of the grantee....

The Claremont City Council removed the reversion covenant on May 10, 2000. Ownership passed several times prior to the 12/1/14 transfer of the property from 140 North Street, LLC to N.I.M.M.A Holding, LLC. The deed to N.I.M.M.A. contains the first two conditions above.

City Manager and the Claremont Planning and Development Department recommend that it is in the best interests of the City of Claremont that the limitation on residential use be released and of no further force or effect. The property will remain subject to compliance with all applicable zoning and building code requirements.

The Claremont City Council hereby authorizes the City Manager, or his designees, to permanently release the above restriction on residential use and undertake all actions and execute all documents as may be required to implement this action. Nothing herein shall affect any restrictions the City may hold as to other parcels. This release pertains to 140 North St. only.

Dated this 28<sup>th</sup> day of August 2024, the City of Claremont, County of Sullivan, State of New Hampshire.

Councilor Limoges asked about building restrictions.

Director Merrill explains once the restriction is lifted we could sell to apartment owners.

**A motion was made by Councilor Hemmingway and seconded by Councilor Koloski to authorize the release of deed restrictions.**

**Roll call:**

**Koloski – Yes**

**Greenrose – Yes**

**Limoges -Yes**

**Matteau – Yes**

**Hemingway – Yes**

**Zutter - Yes**

**Hayden – Yes**

**O’Hearne – Absent**

**Girard – Yes**

**Motion carried 8-0**

Ordinance 633 – Zoning Amendment Recycling – Public Hearing (City Manager/Director of Planning and Development)

**CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-FOUR**

**SUBSTITUTE ORDINANCE #633**

**ZONING ORDINANCE AMENDMENTS**

**The City of Claremont Ordains:**

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

**Section 1. Amend Sec 22-1, Definitions, to read:**

*“Recycling facility”* shall mean collection, storage and transfer facility which collects, stores and prepares recyclable materials for market and transfers processed recyclable materials to markets for recycling. The term includes "recycling center." The collection, storage and/or transfer of hazardous waste or construction and demolition debris, as defined in this section, is expressly prohibited.

*"Construction and demolition debris"* means non-putrescible waste building materials and rubble which is solid waste resulting from the construction, remodeling, repair or demolition of structures or roads. The term includes, but is not limited to, bricks, concrete and other masonry materials, wood, wall coverings, plaster, dry wall, plumbing, fixtures, non-asbestos insulation or roofing shingles, asphaltic pavement, glass, plastics that are not sealed in a manner that conceals

other wastes, and electrical wiring and components, incidental to any of the above and containing no hazardous liquid, metals or waste.

*“Hazardous Waste”* means asbestos waste, garbage, corrugated container board, electrical fixtures containing hazardous liquids such as fluorescent light ballasts or transformers, furniture, appliances, tires, drums and containers, and fuel tanks. It shall also include all substances defined as or determined to be hazardous waste pursuant to RSA 147-A:2VII.

*“Water Pollutant”* shall mean a chemical or physical agent introduced to any body of water that may detrimentally alter the natural condition of that body of water and other associated bodies of water.

**Section 2. Amend Sec. 22-318(4), Special exceptions, to read:**

(4) “Recycling facilities subject to receipt and maintenance of permit or license to operate under RSA 149-M from the New Hampshire Department of Environmental Services, Solid Waste Management Division. The collection, storage and/or transfer of hazardous waste or construction and demolition debris is expressly prohibited and not subject to a special exception.”

**Section 3. Amend Sec 22-317 – Prohibited Uses, to read:**

All uses of land, buildings, structures, or industrial processes that may be noxious by reason of the production or emission into the air or water (both surface and ground) of dust, smoke, refuse matter, odor, gas, fumes, noise, water pollutants, or similar substances or conditions are prohibited in the industry district I. This includes all uses and processes which require use of open stack structures as part of the manufacturing process other than for exhaust of heating and cooling facilities and air circulation and all uses and processes that are not able to be fully contained within a building or structure. This prohibition does not apply to external storage of raw materials or finished product, not contained within a structure, as may be permitted by the planning board as part of the site plan review process.

**Section 4. Prior Enactments Shall Not Be Superseded**

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

**Section 5. Validity**

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

**Section 6. Effective Date**

This substitute Ordinance shall take effect and be enforced immediately upon passage.

Director Merrill

Ford explains the Ordinance

**A motion was made by Assistant mayor Matteau and seconded by Councilor Zutter to pass Ordinance 633 to a second Reading at the September 11, 2024 Council Meeting**

City Planner Mr. Ford explains ordinance.

Rebecca McKenzie Ward II- Inquires how this could help support what has come before.

Peter Nelson Ward III- expresses his love for Claremont and hopes. States we need to say no to people who want to dump their garbage on Claremont.

Bonnie Miles Ward II- States it is tough to find a buyer for that area in town and the value of the house goes down.

**Roll call:**

**Koloski – Yes**

**Greenrose – Yes**

**Limoges -Yes**

**Matteau – Yes**

**Hemingway – Yes**

**Zutter - Yes**

**Hayden – Yes**

**O’Hearne – Absent**

**Girard – Yes**

**Motion carried 8-0**

Ordinance 634 School Zones (City Manager/Chief of Police)

**CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-FOUR**

**ORDINANCE #634**

**AMENDING SCHOOL ZONES**

**The City of Claremont Ordains:**

Pursuant to New Hampshire RSA 47:17 and RSA 265:60, the Claremont City Code is hereby amended to revise Chapter 19, Traffic and Motor Vehicles, Article XI, Regulation of Speed Limits on City Streets, as follows:

**Section 1. Article XI, Regulation of Speed Limits on City Streets.**

Chapter 19, Article XI, Section 19-233, School Zones, is hereby amended and readopted as follows:

**Sec. 19-233. School Zones**

The following streets shall be designated School Zones, and the maximum speed limit shall be ten (10) miles per hour below the usual posted limit from 45 minutes prior to each school opening until each school opening, and from each school closing until 45 minutes after each school closing:

**Maple Avenue School**

Sims Street  
Canterbury Street  
Barton Way  
Maple Avenue, between Ballew Street and Bavier Street

**Bluff School**

Summit Road  
Grove Street, between Summit Road and Laurel Street

**Disnard Elementary School**

Hanover Street, between Dunning Street and Shannon Street  
Garden Street  
Shannon Street

**Claremont Middle School**

South Street, between Baker Street and Chase Street

**Stevens High School**

Summer Street, between Pleasant Street and Broad Street  
Middle Street  
Broad Street, between Glidden Street and Chestnut Street

**Private Schools**

Central Street, between Main Street and Pearl Street  
Hardy Avenue  
McKenzie Drive, between Maple Avenue and Cardinal Lane

**Section 2. Prior Enactments Shall Not Be Superseded**

Any adoptions and/or amendments to Chapter 19, Article XI, Section 19-233 of the City of Claremont Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendment as presented by this Ordinance.

**Section 3. Validity.**

If any article, section, subsection, sentence, clause or phrase of this ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this ordinance.

**Section 4. Effective Date.**

This Ordinance shall take effect immediately upon passage.

**A motion was made by Councilor Hayden and seconded by Assistant mayor Matteau to pass Ordinance 634 to a second Reading at the September 11, 2024 Council Meeting**

Chief Wilmont explains ordinance

**Roll call / Voice vote:**

**Koloski – Yes**

**Greenrose – Yes**

**Limoges -Yes**

**Matteau – Yes**

**Hemingway – Yes**

**Zutter - Yes**

**Hayden – Yes**

**O’Hearne – Absent**

**Girard – Yes**

**Motion carried 8-0**

Ordinance 635 Barber Street, One-Way Street (City Manager/Chief of police)

Chief Wilmont explains ordinance.

**CITY OF CLAREMONT**

**IN THE YEAR TWO THOUSAND AND TWENTY-FOUR**

**ORDINANCE #635**

**“TRAFFIC AND MOTOR VEHICLES”**

**The City of Claremont Ordains:**

Pursuant New Hampshire RSA 47:14 and RSA 265:10, and Chapter 19 (Traffic and Motor Vehicles), Article VI (Specific Street Regulations), Section 19-121 (One-Way Streets) of the City of Claremont Code is hereby amended as follows:

**Section 1. Chapter 19, Article VI**

Section 19-121 (One-Way Streets) is hereby amended to add the following locations:

*Barber Street*, from Broad Street to High Street, east traffic flow only.

**Section 2. Prior Enactments Shall Not Be Superseded**

Any adoptions and/or amendments to Chapter 19, Article VI, Section 19-121 of the City of Claremont Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendment as presented by this Ordinance.

**Section 3. Validity**

If any article, section, subsection, sentence, clause or phrase of this Ordinance is held to be unconstitutional or invalid for any reason, such decision shall not affect the remaining portions of this Ordinance.

**Section 4. Effective Date**

This Ordinance shall take effect immediately upon passage.

Councilor Greenrose states higher traffic volume is going the opposite way.

Chief Wilmont explains egress back towards CVS or Putnam street.

Councilor Zutter would like to see the residents be informed to be here if needed.

Councilor Koloski states there will be an issue with the handicap parking spot.

Chief Wilmont states at present the handicap spot will stay right where they are.

Mayor Girard expresses concern of the one way and he cannot support it.

Councilor Hemmingway in favor of to make it a little safer but now with the questions brought up Hemmingway would like to revisit.

**A motion was made by Councilor Hemmingway and seconded by Assistant Mayor Matteau to pass Ordinance 635 to a second Reading at the September 11, 2024 Council Meeting**

Councilor Koloski states he will vote for it but would like more information about questions asked.

Elizabeth Cram expresses concerns for the possibility of an accident. I still would like the council to support this.

Councilor Hayden asks how the public will be notified of the change.

Chief Wilmont explains the city will reach out via social media.

**Roll call:**

**Koloski – Yes**

**Greenrose – Yes**

**Limoges -Yes**

**Matteau – Yes**

**Hemmingway – Yes**

**Zutter - Yes**

**Hayden – Yes**

**O’Hearne – Absent**

**Girard – No**

**Motion carried 7-1**

Mayor Girard asks Chief Wilmont about where we are at with Broad street and Glidden.

Chief Wilmont explains there is work being done behind the scenes continuously.

**COMMITTEE REPORTS**

Policy Committee will be discussing code of conduct within the next month.

CDA has its match for northern boards Grants.

Councilor Koloski arts commission appointed a vice chair and will begin work on identifying other city assets and looking to do something like the CIP of historical.

**FUTURE AGENDA ITEMS AND DIRECTIVES**

Assistant Mayor Matteau expresses concerns for attendance issue of one of the Councilors. The mayor needs to reach out to this councilor and see if he plans on committing to his duties.

Councilor Koloski states he agrees with Assistant Mayor Matteau, would like the city manager to investigate attendance.

Assistant Mayor Matteau thinks the mayor should say why the councilor is not present and requests the mayor to reach out to the councilor.

Mayor Girard is happy to have a conversation along with Manager Manale.

Councilor Koloski has gotten a complaint about the truck route signs at the end of mulberry street.

Manager Manale explains cameras and lighting and the entire street is having electrical problems

Councilor Koloski states he feels benches should be back where they were and were part of the bond. Suggested a public conversation.

Manager Manale states the chairs will be considered for next year.

Manager Manale explains the benches are currently stored at DPW and they are very difficult to install and remove. They were not used as much as they thought they would be. Different options on how to utilize that space. Something for the agenda next year

Manale the chief and myself will be meeting on this to see what we can do in the future. Code of conduct will be 2 meetings from now.

Councilor Zutter states the Scooter and bike policy really needs to be looked at.

Chief Wilmont e-bikes and scooters legislation will be up for discussion in the next session.

## **CONSULTATION WITH LEGAL COUNSEL**

## **ADJOURNMENT**

**At 8:37 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to adjourn.**

**Voice vote :**

**Koloski – Yes**

**Greenrose – Yes**

**Limoges -Yes**

**Matteau – Yes**

**Hemingway – Yes**

**Zutter - Yes**  
**Hayden – Yes**  
**O’Hearne – Absent**  
**Girard – yes**  
**Motion carried 8-0**

Respectfully Submitted,

Jamie De Rosa